

1.

CASE #	CASE NAME	HEARING NAME
CVPS2501786	PENICK VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL RESPONSE TO SPECIAL INTERROGATORIES SET ONE BY ARLENE PENICK

Tentative Ruling: Granted in part.

Moot as to substantive motion, but granted as to sanctions.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Arlene Penick ("Plaintiff") slipped and fell at Defendant Eisenhower Medical Center ("Defendant") causing her personal injuries. On March 14, 2025, Plaintiff filed her complaint alleging two causes of action: 1) general negligence; and 2) premises liability.

Plaintiff moves to compel initial responses to special interrogatories, set one from Defendant, which were served on January 8, 2026. Plaintiff's counsel declares he gave extensions to April 15, 2026 to respond, but no verified responses were received by that date. Plaintiff also requests sanctions of \$2,565 (\$450 x 5.7 hours + \$60 filing fee).

In opposition, Defendant states its counsel requested an extension to May 6, 2026, but Plaintiff only provided until April 15, 2026. Defendant's counsel's office served unverified responses April 15, 2026, Plaintiff filed the motion May 5, 2026 and verified responses were served May 12, 2026. Defendant argues sanctions are not appropriate as counsel inadvertently forgot to follow up on her client's execution of the verification, but did so promptly after receiving the motion and served the verification upon receipt.

In reply, Plaintiff argues Defendant's late responses were so poor that they required a 29 page meet and confer letter and as such sanctions are appropriate.

Motion to Compel Response(s)

Code of Civil Procedure sections 2030.290(b) allows the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).)

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

Sanctions

As to sanctions, for interrogatories, section 2030.290(c) provides that "the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Defense counsel requested a continuance to May 6, Plaintiff's counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted. However, Plaintiff's request for \$2,565 is too much for this straightforward motion. Reduced to \$960 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502741	RAMIREZ VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY KEVIN RAMIREZ

Tentative Ruling: Granted.

Attorney fees and costs are granted in reduced, but reasonable amount each. Payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5

Plaintiff Kevin Ramirez filed this Song-Beverly action regarding a 2023 Chevy Silverado with various defects. The complaint, filed 4/11/25, asserts: (1) breach of the implied warranty of merchantability; (2) breach of express warranty; (3) failure to promptly repurchase product; (4) failure to commence reasonable repairs within a reasonable time and complete them within 30 days. On 12/4/25, Plaintiff filed a notice of settlement of the case.

Plaintiff moves for attorney fees of \$17,375 and costs of \$1,451.40. He points out that he received a settlement of \$91,0000 plus fees and costs. He contends the hourly rate (\$625) is reasonable and counsel spent 24.8 hours plus 3 hours to draft the reply and attend the hearing.

In opposition, Defendant contends that AB 1755 streamlined this case as it was resolved in 8 months, and the lodestar is excessive. There was little activity other than serving initial disclosures and engaging in mediation. Defendant challenges specific entries and contends that 11.4 hours is reasonable. Defendant also contends the hourly rate is excessive and a more reasonable rate is \$550. It also argues that the costs are excessive and challenges them.

In reply, Plaintiff argues that the hourly rate and hours spent are reasonable.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.